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THE 9TH INTERNATIONAL SCIENTIFIC CONFERENCE
"THE STATE, SOCIETY AND LAW AT THE CROSSROADS OF THE EUROPEAN PROJECT: DEMOCRACY, RULE OF LAW AND INTEGRATION"

MAY 11TH 2026, DURRËS, ALBANIA

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LUIS PRINT
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FACULTY OF POLITICAL SCIENCE AND LAW
ALEKSANDËR MOISIU UNIVERSITY OF DURRËS

ISBN: 9789928835406

LUIS PRINT
SHTËPI BOTUESE | PRINTIME

Shtëpi Botuese, Studio Grafike, Shtypshkronjë
Adresa: Lagjia nr.1, Rruga Taulantia pranë Universitetit “Aleksandër Moisiu”, Durrës
Email: luisiprint@gmail.com
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In partnership with: Sapienza University of Rome, University of Genoa, University Tor Vergata, George Bacovia University, Kazimierz Weilki University, Luarasi University, Mother Tereza University, University of Prishtina, Albanian University, Aleksandër Xhuvani University of Elbasan, Mediterranean University, Academy of Romania, University of National and World Economy, Sara Law Research Center, Research Institute of Romania Academy, Association of Criminalists of Romania, Fehmi Agani University, University of Prishtina, Association for the Study of Professional Labour Relations, Kadri Zeka University of Gjilan

This 9th International Scientific Conference brought together scholars, researchers, and practitioners to explore the evolving relationships among state, society, and law within the broader context of the European project. At a time marked by complex political, legal, and socio-economic transformations, questions surrounding democracy, the rule of law, and integration remain central to both European and global debates.

Europe Week offers an opportunity to reflect critically and constructively on Albania's European path. For more than three decades, European Union integration has been declared a strategic national objective and consistently supported by the overwhelming majority of Albanian citizens.

This conference provided a scholarly forum for researchers, legal experts, public administration experts, political scientists, policymakers, and doctoral candidates to engage in evidence-based discussion on the future of Albania's European integration and its implications for democracy and the rule of law. The Faculty of Political Science and Law is home to scholars who contribute to constructive, rigorous, and forward-looking discussions on Albania's European future and its implications.

While the conference adopts a broad and comparative perspective, it also seeks to highlight developments and challenges relevant to Albania, situating them within wider regional and international dynamics.

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Beyond Transition: EU Conditionality and the Transformation of Democratization in Albania

Prof. Assoc. Dr. Juliana Marko Gjinko
University of Tirana

Abstract

The end of communist regimes in Eastern Europe was expected to be followed by gradual transitions towards liberal democracy. However, the assumptions of the classical transition paradigm have been challenged by the experiences of many post-authoritarian states. Albania represents a particularly interesting case, as more than three decades after the fall of communism, it still exhibits hybrid regime patterns despite democratic reforms and a strong commitment to European integration. This paper questions whether European Union conditionality has created an alternative roadmap to democratization and explores the extent to which externally driven reforms have contributed to democratic consolidation in Albania.

The paper discusses the following research question: Can EU conditionality and its impact constitute a new model of democratization beyond the classical transition paradigm, and what does the Albanian case reveal about its opportunities and deficiencies?

A qualitative case study approach is used, combining theoretical perspectives from the democratization and Europeanization literature with indicators of democratic development in Albania. Particular attention is paid to reforms, political crises, and assessments provided by international organizations such as Freedom House and the European Commission.

Research shows that EU conditionality has impacted institutional reform and has become a major source of political legitimacy in Albania. Nevertheless, the adoption of democratic institutions has not necessarily translated into substantive democratic consolidation. Corruption, weak institutional capacity, and mutual delegitimization continue to weaken democratic governance. The paper argues that Albania illustrates a condition of "permanent conditional transition," in which reforms are externally driven and open-ended rather than culminating in consolidated democracy.

Keywords: Democratization, EU Conditionality, Albania, European Integration, Western Balkans

1. Introduction

The collapse of communist regimes in Eastern Europe caused enthusiasm for democratic transformation. Throughout the 1990s, democratization was viewed through the lens of the *transition paradigm*, which assumed that countries emerging from authoritarian rule would gradually progress toward liberal democracy. Elections, institutional reforms, and political liberalization were expected to create a self-reinforcing, linear process that would at last lead to democratic consolidation.

This paradigm has been increasingly criticized over time. Time and again, scholars have observed that many countries failed to complete the transition phases as described by earlier theories. Instead, they developed hybrid political systems characterized by formal democratic institutions combined with persistent elite domination, weak rule of law, corruption, and clientelism.

Albania represents one of the most illustrative examples of this phenomenon. After the fall of communism in 1991, Albania has undertaken major political and institutional reforms. The country has adopted a democratic constitution, conducted some rounds of regular elections, and pursued ambitious judicial and administrative reforms. At the same time, partisan division, corruption

scandals, and recurring institutional crises have repeatedly called into question the achievement of democratic consolidation. These developments have occurred within the wider framework of European integration, making Albania a useful case for investigating the relationship between external conditionality and domestic democratization.

This paper discusses the following research question: Does EU conditionality represent a new model of democratization beyond the classical transition paradigm, and what does the Albanian case reveal about its opportunities and limitations?

The paper argues that EU conditionality has transformed democratization into a prolonged and externally mediated process rather than a linear transition toward consolidated democracy. Albania demonstrates that standard institutional compliance can be compatible with democratic deficiencies. Consequently, the country is best understood as experiencing a permanent conditional transition, alternating between democratic aspirations and stabilitocratic governance.

2. Literature Review

The transition paradigm emerged during the third wave of democratization and was developed by scholars such as Huntington (1991), Rustow (1970), and O'Donnell and Schmitter (1986). These scholars viewed democratization as a process moving from authoritarian breakdown to democratic consolidation through elections, institution-building, and elite accommodation. Although transition theory never claimed unquestioned determinism, it often implied a progression from the collapse of authoritarian rule to democratic consolidation. Elections were frequently treated as important milestones in this process, and democratic development was commonly conceptualized as a clear sequence of stages.

Later scholars questioned the validity of this model. Francis Fukuyama (1997) stressed the importance of state capacity. Democratic institutions cannot function effectively without competent bureaucracies, the rule of law, and effective administration. Elections alone are not sufficient if states lack the institutional foundations for democratic rule. Donald Horowitz (2014) similarly criticized mostly generic models of transition. He pointed out the importance of what he called the "tyranny of starting conditions," arguing that historical legacies, institutional structures, and social gaps strongly influence democratic outcomes. Countries with different political and institutional circumstances cannot be expected to follow identical democratization processes. Larry Diamond (2014) further challenged optimistic assumptions about democratization by stressing the possibility of democratic stagnation and decay. Democratic transitions may produce regimes with significant "birth defects," and consolidation is neither automatic nor unchangeable. Thomas Carothers (2002) challenged these assumptions by arguing that many countries stayed in what he named the "gray zone," neither fully democratic nor authoritarian. According to Carothers, democratization does not follow a linear sequence, and the election mechanism does not guarantee democratic consolidation.

Alongside debates regarding democratization, a substantial literature has analyzed the impact of EU conditionality on political reform. Authors such as Grabbe (2002), Schimmelfennig and Sedelmeier (2005), and Pridham (2006) argue that negotiation incentives provide strong mechanisms for encouraging institutional reform. Through monitoring, benchmarking, and conditional rewards, the EU aims to promote democratic procedures among candidate countries.

More recent studies have questioned the value of this methodology. The concept of stabilitocracy has become influential in studies of the Western Balkan countries. In the Balkan context, research has focused on the active interaction between EU integration and domestic political development. Bieber (2017), Richter & Wunsch (2020, p. 4), and Zweers et al. (2022) highlight the paradox that the EU becomes increasingly dependent on regional governments to advance its democratization

agenda, as these governments simulate reforms to capture the benefits of integration. They formally comply with the newly adopted laws but fail to implement them or build actual institutional integrity. Albanian democratization remains closely tied to EU incentives, yet it also exposes the limitations of conditionality when domestic political actors lack real commitment to democratic reform. Albania's experience, therefore, provides an ideal case for evaluating the strengths and weaknesses of externally driven democratization.

In short, classical theory views democratization as a relatively linear, elite-driven process; critics claim that transitions are far more varied and often fail to obtain a consolidated democracy. The most recent literature suggests that external conditionality may unintentionally reinforce hybrid political systems through focusing on stability and technical compliance over real democratic transformation.

3. Methodology

This paper uses qualitative case-study research to examine the relationship between European Union conditionality and democratization in Albania. A case-study approach is appropriate because the research seeks to understand political processes that develop over time and are shaped by interactions between domestic and transnational factors. Rather than testing a universal causal relationship, the paper discusses how EU conditionality has influenced democratic development in a specific national context.

The paper adopts an interpretive and illustrative approach, based on theories of democratization, Europeanization, and stabilitocracy. Albania was selected as an important case because it is, at the same time, one of the most advanced EU candidate countries in the Western Balkans, though it presents many characteristics of hybrid regimes. The country has undergone extensive institutional reforms under EU support, yet democratic consolidation remains incomplete. This combination makes Albania particularly suitable for assessing both the ability and limitations of EU conditionality as a mechanism of democratic transformation.

This paper is led by the logic of theory-guided case analysis. It uses Albania to evaluate conflicting theoretical expectations derived from the transition paradigm, critiques of democratization theory, and the stabilitocracy literature. In particular, the analysis assesses whether EU-driven reforms support democratic consolidation or unintentionally conserve hybrid political arrangements. The research relies on secondary qualitative data collected from academic, institutional, and policy-oriented sources. These include: Scholarly literature on democratization, including the works of Rustow (1970), O'Donnell and Schmitter (1986), Carothers (2002), Fukuyama (2014), Diamond (2014), and Horowitz (2014); Academic studies on Europeanization and EU conditionality in candidate countries; European Commission Progress Reports on Albania; Freedom House *Nations in Transit* reports and democracy scores; Policy reports addressing democratic administration and stabilitocracy in the Western Balkans; Analyses of Albania's political crises, judicial reforms, and EU accession process.

Particular attention is given to two key publications that provide the conceptual basis of this paper. The first is *Reconsidering the Transition Paradigm* by Diamond, Fukuyama, Horowitz, and Plattner (2014), which reassesses the assumptions of classical transition theory. The second is *The EU as a Promoter of Democracy or Stabilitocracy in the Western Balkans?* (Knežević and Ćorić, 2023), which examines the unintended consequences of EU enlargement policies and introduces the concept of stabilitocracy as a structure for understanding democratic stagnation in the region.

The case-study approach gives valuable insights into the dynamics of democratization amid ongoing external influence. By combining theoretical evaluation with data from Albania, the study

contributes to active debates on the effectiveness of EU conditionality and the future of democratization in the Western Balkans.

4. Results

The findings indicate that Albania's post-communist democratization has been distinguished by major institutional reforms but limited democratic consolidation. Three main patterns emerge from the analysis: the persistent influence of historical legacies, the reformative yet limited role of EU conditionality, and the presence of hybrid governance structures.

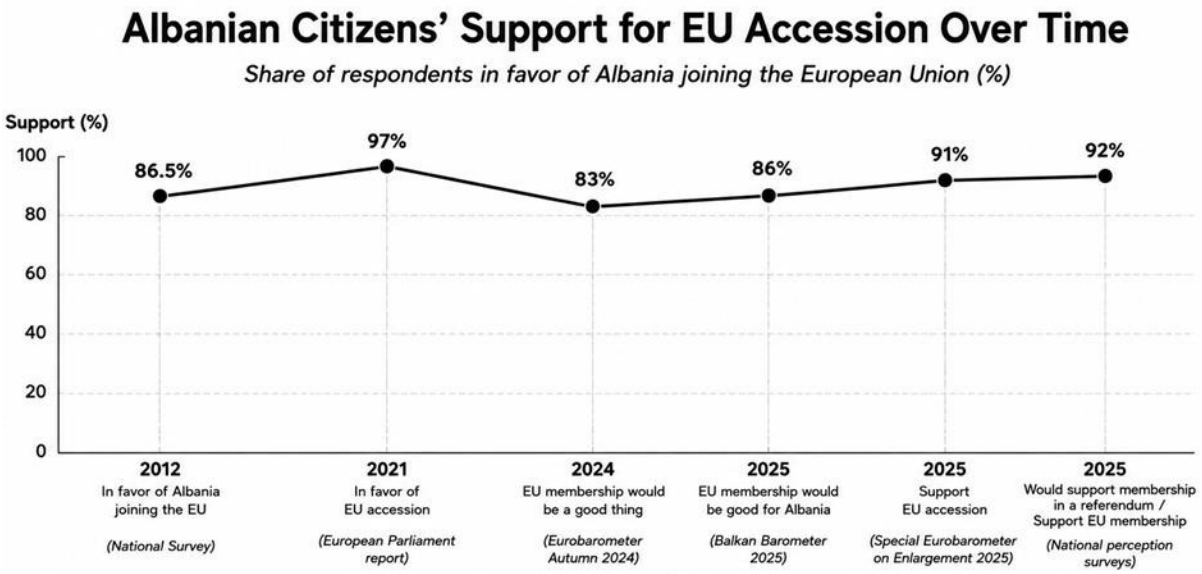
Albania's Starting Conditions and Democratic Development

The first finding concerns the impact of Albania's initial post-communist conditions. Following the collapse of the totalitarian regime in 1991, Albania entered the democratization process with weak state institutions, limited administrative capacity, weak civil society, and no experience with democratic rule. These conditions support Horowitz's argument that democratization outcomes are strongly impacted by historical and institutional starting points (Horowitz, 2014). The authoritarian tendencies in the early 90ties and the 1997 collapse of state authority following the pyramid scheme crisis demonstrated the weakness of Albania's transition. The crisis exposed the inadequacies of state institutions and brought out the limitations of electoral democracy in the absence of capable governance structures. Rather than progressing smoothly toward democratic consolidation, Albania experienced a period of severe institutional instability that challenged the assumptions of the classic theory of linear democratic development.

EU Conditionality as a Driver of Reform

Regarding EU accession, Albania has remained one of the most enthusiastic countries in Europe over the last decade, with support for EU membership reaching 86% in 2025 (Regional Cooperation Council, 2025). These widespread expectations are also reflected in the political parties' programs and public declarations by political elites. Both in internal politics and in the international arena, EU integration is regarded as Albania's only program and strategy.

Table 1. EU accession Support



Regarding the role of EU conditionality, since the early 2000s, the prospect of EU membership has become the most important external incentive for institutional reform. Judicial reform and restructuring, anti-corruption measures, and public administration reforms have largely been pursued within the framework of EU accession requirements. The judicial vetting process represents one of the most significant reform initiatives launched in Albania. (Piqani, 2026) Supported by the European Union and international partners, the reform was intended to strengthen judicial independence and combat corruption inside the judicial system. Similar efforts have been undertaken by establishing specialized anti-corruption institutions (European Commission, 2025). These developments support the literature on Europeanization, which argues that EU conditionality can cause major institutional change by linking reforms to membership incentives (Grabbe, 2002; Schimmelfennig & Sedelmeier, 2005).

Persistence of Hybrid Governance

Despite substantial reforms, Albania continues to show characteristics of a hybrid regime. According to Freedom House's *Nations in Transit 2024* report, Albania remains classified as a Transitional/Hybrid Regime, placing it among countries that combine democratic institutions with persistent governance deficiencies (Freedom House, 2024).

Table 2. Albania's Progress and Regress According to "Nations in Transit" (Freedom House 2024)

Dimension	**Trend in 2024**	**Direction**	**Assessment**
National Democratic Governance	No significant change	Stable	Continued concerns about concentration of political power and weak institutional checks.
Electoral Process	No significant change	Stable	Local elections highlighted ruling-party dominance and ongoing political polarization.
Civil Society	Stable	Stable	Civil society organizations remained active but continued to face structural and political constraints.
Independent Media	Regress	Negative	Journalists faced verbal and physical attacks, and conditions for media freedom deteriorated.
Judicial Framework & Independence	Limited progress	Positive	Judicial reform efforts continued, though challenges related to effectiveness and independence remained.
Corruption	Improvement maintained	Positive	Anti-corruption institutions, particularly SPAK, sustained earlier gains in investigating high-level corruption.
Overall Democracy Score	Unchanged	Stable	Albania's Democracy Score remained at 3.79/7 (46.43/100), retaining its classification as a Transitional or Hybrid Regime.

Political division, clientelism, and weak institutional accountability continue to damage democratic governance. The 2019 political crisis, defined by opposition resignation from parliament and nationwide protests, contested elections, and extensive international mediation, revealed the continued dependence of Albanian politics on external actors to resolve domestic disputes (Gjinko, 2019).

The evidence therefore suggests that institutional reform has advanced more rapidly than substantive democratic transformation. While democratic institutions have become more sophisticated, many of the underlying political practices identified in the literature on hybrid regimes remain largely unchanged. (Laštro & Bieber, 2023)

5. Discussion

The analysis contributes to ongoing debates regarding both democratization theory and EU enlargement policy. They suggest that Albania cannot be adequately explained through the assumptions of the classical transition paradigm. Instead, the Albanian case supports contemporary critiques that emphasize the non-linear and contingent nature of democratization.

Carothers (2002) argued that many post-authoritarian countries become trapped in a "gray zone" between democracy and authoritarianism. Albania appears to fit this description. More than three decades after the collapse of communism, the country has built democratic institutions, holds first contested, then accepted, competitive elections, and has constitutional guarantees of political rights. However, persistent weaknesses in governance, accountability, and rule of law continue to prevent full democratic consolidation.

The Albanian experience also confirms Horowitz's (2014) argument regarding the importance of starting conditions. The country's legacy of authoritarian isolation, institutional weakness, and limited democratic experience continues to impact contemporary political results. Similarly, Fukuyama's emphasis on state capacity remains highly relevant. Although Albania has accomplished progress in building democratic institutions, institutional effectiveness and administrative autonomy remain uneven.

At the same time, the findings show important flaws in the EU's democratization strategy. Traditional Europeanization literature often assumes that conditionality produces democratic reforms through incentives and compliance mechanisms (Grabbe, 2002; Schimmelfennig & Sedelmeier, 2005). While this assumption is partially supported by the Albanian case, the evidence suggests that compliance does not necessarily lead to democratic transformation.

The stabilitocracy literature provides a useful structure for understanding this difference. According to Zweers et al. (2022), Western Balkan governments often adopt formal reforms while continuing political practices that damage democratic accountability. In this context, EU enlargement policy may unintentionally reinforce hybrid governance by prioritizing stability, cooperation, and technical compliance over broader political change.

Albania demonstrates several characteristics associated with stabilitocracy. Successive governments have publicly embraced European integration while continuing to engage in highly distinctive and divisive political competition. Moreover, EU institutions have frequently relied on incumbent political elites as primary partners in the reform process, potentially strengthening existing power structures rather than transforming them (Zweers et al., 2022).

The concept of ***permanent conditional transition*** may help to explain this pattern. As opposed to classical transition theory, which assumes a movement toward democratic consolidation, permanent conditional transition describes a political condition in which reforms are pursued continuously under external supervision, yet democratic deficiencies remain unresolved. Under this model, democratization becomes an ongoing process rather than a clearly defined outcome.

Table 3. Gaps between formal progress and democratic consolidation

Dimension	Formal Progress	Persistent Weakness
Elections	Regular competitive elections	Polarization and boycotts
Judiciary	Vetting reform, SPAK	Political influence concerns
Rule of Law	New legal framework	Weak implementation
EU Integration	Candidate status, negotiations	Reform fatigue and credibility issues

6. Conclusion

This paper examined whether EU conditionality represents an alternative pathway to democratization beyond the classical transition paradigm. Using Albania as a case study, the analysis explored the interaction between domestic political development and external reform incentives associated with EU integration.

The findings show that EU conditionality has played an important role in promoting institutional reform. Judicial restructuring, anti-corruption initiatives, and public administration reforms have substantially altered Albania's formal institutional framework. These developments confirm the lasting relevance of EU conditionality as a mechanism of political influence and institutional change.

However, the analysis also shows that official compliance with democratic standards has not led to full democratic consolidation. Political division, clientelism, weak organizational accountability, and recurring political crises continue to undermine the quality of democratic administration. In this aspect, Albania reflects many of the characteristics identified by Carothers (2002) in his critique of the transition paradigm, as well as by contemporary scholars of stabilitocracy in the Western Balkans.

The Albanian case therefore challenges both optimistic assumptions about democratic transitions and overly positive assessments of EU reforming power. Democratization cannot be understood solely as a process of institutional reform or legal compliance. Rather, it depends on bigger changes in political practices, state capacity, and democratic accountability.

The paper concludes that Albania is best understood as a case of *permanent conditional transition*, in which democratic reforms continue to be driven by external incentives while substantive democratic consolidation remains incomplete. Future studies might extend this analysis by comparing other Western Balkan states to determine whether permanent conditional transition constitutes a broader regional pattern of democratization under EU influence.

Acknowledgments: *This paper has been written in the framework of the Jean Monnet Module "EU Pathways to Engagement in the Western Balkans" (EUWB) – 101127162.*

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The Interim Benchmark Assessment Report (IBAR) mechanism as a test for Albania's integration process

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Abstract
European Union integration remains the main goal of Albanian foreign policy. Albania is a unique case in the region, with strong public support for EU accession. This support also comes from all political forces and civil society groups that endorse the integration agenda.
The Albanian integration process has reached an important phase: in May 2026, the EU Commission approved the Interim Benchmark Assessment Report (IBAR). Now, as the country moves forward, the final part of the process should focus on implementing reforms and achieving tangible results, not merely legislative alignment.
The study analyses the integration process through the "fundamentals" first methodology and the importance of the IBAR. The report serves as a standard for initiating and concluding negotiation clusters and for a critical assessment of the rule of law's endurance and the protection of fundamental rights. Additionally, the research evaluates how the IBAR acts as a tool for measuring the gap between institutional and substantive implementation.
Methodology: This study employs a qualitative analysis of primary and secondary sources, commenting on the European Commission's progress reports over the last three years with respect to the specific interim benchmarks established to enhance the judiciary and protect fundamental rights.
The paper analyzes IBAR's dual role, highlighting the shift from formal legislative alignment to the evaluation of reform implementation, and concludes that, although IBAR plays a positive role, the EU is focused on screening the actual implementation of reforms.
Keywords: Interim Benchmark Assessment Report, Fundamentals, Integration strategy, European Integration.

1. Introduction

The European Commission introduced a modified accession strategy in 2018 to face the doubts of skeptical countries toward the future enlargement of the EU. This new strategy introduced the reverse conditionality, a concept first introduced in the Balkan enlargement, which aims to strengthen democracy in the region.
The main intention of the new methodology is to prevent backsliding on EU values and to avoid repeating the problems faced in the previous enlargement

(Schimmelfennig, 2004). According to the European Parliament, the Balkan countries encounter challenges in the reform implementation process (European Parliament Recommendation on the Western Balkans, 2021). The EU has upgraded its conditionality framework regarding the rule of law.

The crucial point of this new methodology is the strengthening of the rule of law and the implementation of fundamental rights (Rule of Law - Enlargement and Eastern Neighborhood - European Commission, 2018). The EU aims to strengthen the legal system in the Balkans and to ensure the protection of human rights and the implementation of reforms. Since the launch of the new strategy in 2018, the European Commission has consistently confirmed the European perspective for the region.

Also, the EU Commission assesses the implementation of the reforms, especially regarding Chapter 23 (Judiciary and Fundamental Rights), part of Cluster 1, which sets the timeline for the integration process and concludes it. The lack of implementation of reforms in this chapter prevents the process from progressing (European Parliament Recommendation on the Western Balkans, 2021).

The first Intergovernmental Conference took place in July 2022, and Albania entered a serious "screening" process. The role of this process was to monitor and assess Albania's compliance with the EU acquis, especially chapter 23 (Novaković, M., & Bošković, M. M., 2026).

In Albania, the EU has, first of all, impacted the approval of the justice reform in 2018, the creation of new institutions and processes like the vetting process for corrupt prosecutors and judges (Bregu, 2024). Now, following the European Commission's positive evaluation of the IBAR (Council of the EU, 2026), there has been a shift in EU conditionality. The EU requires that the process outcome be outlined, confirming that the positive IBAR goes beyond the formal control of reform implementation and serves as an instrument for evaluating it.

2. Literature Review

The use of conditionality in the region and, after the new enlargement methodology, the use of reverse conditionality have been the object of many authors in the EU studies literature. These authors generally try to explain formal reform or rule adoption in terms of a full institutional transformation and the absorption of the EU integration criteria. There is debate in EU doctrine about the utility of leverage, especially active leverage (Vachudova, 2005), in shaping states' compliance with the EU's transformative requests. Other authors, such as Mendelski (2014) and Kmezic (2019), confirm the opposite: “externally driven reform of the rule of law cannot succeed because it is usually used by the political elite to ensure fake compliance” (Noutcheva, 2009). This is the result of externally driven reform in the rule-of-law field, according to Dimitrova (2010), who describes it as “empty-shell institutionalization when the candidate state seeks to satisfy external

benchmarks". So, the future EU members focus only on "mere alignment" and not on full implementation of the EU values and ensuring the reform results to improve the daily life of their citizens. There are not many articles regarding the use of this strategy in Albania regarding the rule of law or the justice reform; we can mention Bregu (2024) on the efforts of the EU in the justice reform approval in Albania and Bregu and Gjinko (2025) on the EU impact on reform implementation in Albania. Another important author is Beqiraj (2026), who has studied the impact of the Instrument for Pre-Accession Assistance on Albania's rule of law. This paper aims to make a positive contribution to understanding the impact of the EU strategy, especially the IBAR, on the country's integration process.

3. Methodology

The objective of this study is to examine IBAR's relevance in the integration process and to evaluate whether a positive IBAR automatically translates into a fulfillment of the integration conditions. Additionally, the study focuses on the 'Fundamentals First' approach introduced by the new methodology and its application to Albania's path. Through a qualitative approach, this study will assess how the EU has tried to overcome doctrinal concerns of "fake compliance and empty-shell institutions".

This research utilizes academic literature, some of the most relevant authors on integration methodology, and the use of the EU of this methodology to overcome some of the main concerns of the most skeptical countries on further EU enlargement. As primary sources, the paper analyzes the European Commission Progress Reports, especially after 2018, the main Court of Auditors' report on the rule of law and use of conditionality, the Common Position on fundamentals, the Interim EU Common Position on the IBAR report, and reports from respected civil society groups such as the Institute for Democracy and Mediation. The study seeks to evaluate whether the use of financial leverage and conditionality in the rule of law can affect the implementation of reforms in Albania, especially rule-of-law reform.

4. Results

The EU common position outlines three primary priorities for Chapter 23 that Albania must address to achieve a positive Interim Benchmark Assessment Report. The country needs to guarantee judicial independence, combat corruption and organized crime, and protect human rights (Enlargement: Albania meets interim benchmarks for fundamentals cluster, 2026). On the first point, the EU in 2024 recommended strengthening the independence of the judiciary to ensure accountability and combat widespread corruption in the country. These long-term priorities are similar to those of other countries in the region (EU Enlargement Policy: Annual Reports and Communications, 2025). While such problems are common across the region, according to

doctrinal judgment, the EU Commission must tailor a personalized approach to support the Balkan countries in achieving their priorities. (Kmezic, 2020).
The new EU enlargement strategy aims to strengthen the rule of law in Albania by improving benchmarks and the monitoring system, so the country needs to fully implement the EU indicators and justice reform. Albania has always supported EU integration since the fall of the communist regime, has made it the main point of its foreign affairs strategy, and has also made it a shared objective with the general public and civil society. The support of the society has had a positive impact on the fulfillment of some EU conditions, like the aproval of the justice reform, which was requested by the EU but also supported by the general public. (Bregu, Gjinko, 2024). Albania is the first country in the region to have undertaken a thorough justice reform and to have changed its constitution to adopt it (Bregu, 2024).
Nevertheless, the second step is implementing justice reform to enhance the rule of law in the country. The implementation depends not only on the creation of new institutions but mainly on the internationalization of EU standards and values, alongside political commitments. At times, this process has been obstructed by informal power and corruption (Kmezic, 2017). In this context, in the first year after the adoption of the justice reform in 2018, the EU sought to boost both top-down and civil society initiatives promoting the rule of law (Marovic, Prelec, Kmezic, 2019).
On Albania's European path, the implementation of the law reform is crucial not only to strengthen the rule of law but also to internalize a core principle of the EU's foreign policy. This is evident considering the role of the rule of law and its position in the integration process, which is part of Chapter 23, the most important chapter in the EU integration. Through the 'Fundamentals First' lens, institutional integrity stands as both an essential component of negotiations and an absolute prerequisite for joining the Union (Ognjanoska, 2021).
Albania has been granted 134 million euros to support the implementation of Chapter 23 in Albania via IPA II component, a very important contribution second only to Serbia (European Court of Auditors, 2022). This important financial aid was at the center of the Court of Auditors' Special Report on the impact of rule-of-law support in the Western Balkans (European Court of Auditors, 2022), which assessed whether EU support across all rule-of-law components from 2014 to 2020 has achieved its goals.
The report recommended the comprehensive implementation of justice reform but pointed out certain problematic areas. Although the EU's efforts in Albania have significantly improved technical and operational aspects, the overall impact on the rule of law remains limited. The result depends on the absence of the political elite's intention to further pursue the internalization of EU values and to fully implement the justice reform, which has been modified multiple times since 2020 (Beqiraj, 2026).

This document presents the most recent audit by the Court of Auditors, focusing on the effectiveness of rule-of-law support in the region's countries. In line with Strelkov's opinion, the EU's leverage in consolidating the judicial system and protecting human rights depends on internal political will, which remains inconsistent in Albania (Strelkov, 2016).

According to the European Court of Auditors (2022), to strengthen the EU's role and ensure the fulfillment of the fundamentals, the Court recommended establishing a direct link between the disbursement of IPA funding in areas unrelated to the rule of law and progress on the rule of law. In this way, the Court paved the way for firmer conditionality, thereby creating a stronger incentive for political leaders to fulfill their commitments (Baraggia, Bonelli, 2021).

In line with this stronger conditionality and true to the strategy "fundamentals" first, the European Commission has introduced the Implementing Regulation for the Western Balkans under the Reform and Growth Facility. According to this strategy, funds are delivered within the region only if the countries meet the conditions set out in the Rule of Law Roadmap (Directorate-General for Enlargement and Eastern Neighborhood, 2025). This is also evident in the Albanian case in 2025: the second tranche of the EU contribution was approved but linked payment to the fulfillment of conditions related to the Fundamentals" (European Commission, Implementing Decision, 2025).

In 2024, Albania's fulfillment rate was 68%: the country completed 11 of 16 requested steps, but in 2025 this rate fell to 9 of 20 (Institute for Democracy and Mediation, 2025). This non-compliance was linked to clusters 23 and 24, rule of law and human rights, the most sensitive areas of governance, such as judicial independence, anti-corruption, and media freedom. However, the real data drop occurred in 2026; the European Commission found that Albania had met only 26.6% of its conditions (a mere 12 of 45 payment conditions) (Directorate-General for Enlargement and Eastern Neighborhood, 2026). This sharp drop-off relative to 2024 and 2025 indicates a stricter role for the EU. It is also evidence that technical legislative compliance faces a steep structural impasse when subjected to rigid, data-driven European control. This is the case the EU is trying to overcome through stricter conditionality.

The EU payment conditionality for implementing reforms under the Reform and Growth Facility marks a shift from a formal monitoring approach to one that focuses on the quality of implementation. The IBAR has become key to the financing of other projects under the Reform and Growth Stability. The IBAR serves as a tool to determine whether there is the will to go beyond adopting reforms and to strengthen the separation of powers and accountability. So, the technical metrics used in the 2026 Common Position are meant to overcome political objections and resistance and address the implementation gap.

Using the doctrine and especially the works of authors like Mendelski or Caposela to evaluate the situation, the impasse between mere criteria

fulfillment and implementation may derive from a lack of will among the political elite, inadequate institutional capacity, or, according to Kmezic, other interests that block progress in areas that threaten established power structures (Mendelski, 2014; Caposela, 2015; Kmezic, 2019).

The partial fulfillment of the integration criteria demonstrates that Albania faces the challenge of moving from formal legislative outputs to outcomes. It also shows that the problem lies in the implementation of the laws and the reforms adopted to meet the integration criteria. It reflects the rigorous standard of proof now required by the EU. This problem is present in the 2026 Commission Decision, which, despite its positive aspects, has imposed verifiable data requirements for implementing the reform rather than formal conformity with the law (European Commission, Implementing Decision, 2026).

5. Discussion

As the paper above analyses, the European Commission has, since 2022, prioritised strengthening the rule of law and protecting human rights through the Reform and Growth Facility (2024-2027).

Negotiation clusters will not be closed until the strict requirements of Chapters 23 and 24 are fully met. This position prioritises tangible results over mere alignment.

An interesting point is worth noting: the Progress Report in 2023 incorporates the results of the Reports mentioned above from the European Court of Auditors and introduces the Reform and Growth Facility (2024- 2027), linking financial aid to the fulfilment of specific reform agendas as provided by the European Commission framework for the Western Balkans Reform and Growth Facility in 2024.

The IBAR became the center of the integration process. The EU, in line with the new enlargement strategy and given that Albania has passed the initial integration stage, focused more on results than on legislative alignment.

The 2025 Progress Report evaluated progress on Chapter 23 requirements. However, in 2025, the Commission, through the Implementing Decision, authorized the second disbursement of funds to Albania, linking financial consequences to the EU Commission's assessments and establishing specific conditions to ensure the irreversibility of the reforms.

What distinguishes the 2025 Progress Report from previous years is the incorporation of the Reform and Growth Facility. The EU strategy linked the payment of financial aid with the fulfillment of the Reform Agenda. This new strategy seeks to address the lack of "political will" to execute reforms by connecting financial aid to the fulfillment of specific rule-of-law benchmarks and using the IBAR as financial leverage.

IBAR is the practical application of Recommendation 3 of the ECA report. This strategy suggests that the EU is trying to address the critiques of scholars such as Kmezic and Mendelski (Kmezic, 2025; Mendelski, 2015). Mendelski

argues that externally driven reforms, especially in the rule of law area, are captured by domestic elites who instrumentalize them to maintain their power and the status quo.
The EU evaluates, through the IBAR, not only the creation of the institutions but also the outcomes of their activities. The reinforcement of the new enlargement strategy overcomes the critiques of the doctrine.
The EU moved from broad political assessments to a highly detailed request to enhance the rule of law. So to prevent a rushed accession, the process relied on opening an interim evaluation and closing benchmarks. In this regard, the IBAR serves as a defensive mechanism to ensure the reforms move forward. Also, the Reform and Growth Facility can be transformed into a new form of active leverage to bypass a lack of political will when enlargement is perceived as not very credible in line with the theory of EU active leverage (Vachudova, 2005).
By shifting from a monitoring-based approach to a pay-for-performance model, the EU has moved beyond evaluating sole compliance with the criteria to evaluating the implementation of reforms as a prerequisite for financial aid. Kmezić's and others' primary critique was that benchmarks prioritize the mere adoption of laws over their effects. The new strategy deals with this through the Reform and Growth Facility. By making the IBAR a prerequisite for the "closing" stage of negotiations, the EU uses the report's technicality to achieve the political goal of dismantling state capture—a key concern in Kmezić's literature.
This EU approach, which focuses on achieving substantive advancements in the rule of law field, reduces the risk of creating superficial institutional structures (Dimitrova, 2010), in which countries establish institutions merely to satisfy EU criteria, without these institutions having real authority or meaningful influence on societal Europeanization.

6.**Conclusion**

At this point, after the positive IBAR, can we confirm that Albania has met the requested conditions? The "skeptical" countries, such as France, Germany, and the Netherlands, emphasized the need for results before the process continues, so at this point the IBAR serves as both a guarantee and a tool of conditionality. A strict focus on fulfilling the fundamentals is necessary to prevent a possible slide back for future EU members.
On the other hand, the countries involved, Italy, Spain, and Austria, prioritize geopolitical considerations and take the full scope of the process into account. They argue that a positive IBAR was necessary to balance EU criteria with the credibility of the EU enlargement strategy. Also, a positive IBAR, or a clear timetable, allows Albania to continue the reforms undertaken and advance their implementation.
Strict adherence to the IBAR can limit enlargement efforts. While benchmarking often focuses on adopting new laws or institutions, it does not

ensure judicial independence or lower corruption levels. In Albania's case, the EU has emphasized enlargement, issued a positive IBAR, and also called for increased efforts to meet the core integration criteria.

Also, without strict conditionality that carries real consequences for failing to implement reforms and for failing to enhance the rule of law effectively, the benchmarks cannot realize their transformative potential. Therefore, the IBAR needs to move beyond a mere technical checklist to become a mechanism for irreversible democratic change, while also balancing EU foreign policy objectives.

In the Albanian case, the positive IBAR is a success and a positive signal for the integration process, not a clear sign of the fulfillment of the integration criteria, but rather a recognition of positive efforts. Despite the positive IBAR, the EU remained firm in its request. The EU demanded a guarantee of the separation of powers, requested that it not pressure judicial institutions, and explicitly affirmed that it will no longer accept substitutes for the implementation of real reforms. This year marks a critical milestone for Albania's integration process. Moving forward requires all domestic actors to focus their efforts on shifting from basic legal alignment to actual implementation and credibility

Acknowledgments

This article has been written in the framework of the Jean Monnet Module "EU Pathways to Engagement in the Western Balkans" (2023-2026) 101127162 — EUWB — ERASMUS-JMO-2023-HEI-TCH-RSCH

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Procedural Guarantees for Juveniles in Criminal Proceedings in Albania in Comparison with International and European Standards

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Abstract

The protection of juveniles in criminal proceedings has always been part of modern justice and is an imperative obligation of international human rights law. Juveniles must be given special procedural protection by virtue of their age, cognitive and psychological maturity and vulnerabilities. There are international and European instruments that address the treatment of minors in criminal proceedings, namely the UNCRC, the Beijing Rules, and the Directive (EU) 2016/800. As a result of this commitment, Albania has introduced a series of crucial legal changes: it has adopted Law no. 37/2017, the "Juvenile Criminal Justice Code," and harmonised its legislation with international and European standards. The purpose of the present study is to research the existing procedural safeguards for juveniles involved in criminal proceedings in Albania and to assess the compliance of the Albanian legal framework with international and European standards. This research aims to determine whether Albanian criminal procedure legislation provides juveniles with effective procedural protection in compliance with the relevant standards. Thus, the research endeavours to highlight the main objectives and objectives by analysing the juvenile justice legal framework, the main procedural guarantees available to minors, as well as the challenges to the application of these safeguards. The research follows a qualitative and comparative legal method, including the study of Albanian legal acts, international conventions, EU directives, and relevant case law of the European Court of Human Rights (Mustafaraj, 2021, pp. 67-90). The research also utilises literature and reports by academic scholars and relevant institutions. In addition, empirical evidence and case studies are considered to enrich the analysis. For example, recent UNICEF and European Commission reports document that, despite legislative reforms, there are still delays in providing legal assistance to minors, and several cases have revealed challenges in ensuring consistent access to specialised support during proceedings (UNICEF, 2023; European Commission, 2024). According to the results achieved, Albania has taken important steps to build a dedicated system and to ensure robust procedural guarantees, namely: the right to legal assistance; privacy and confidentiality; and the prohibition of non-proportional detention. However, the implementation of these safeguards remains hampered by shortcomings in institutional capacity and professional training.

Keywords: Juvenile Justice; Procedural Guarantees; Criminal Proceedings; Children's Rights; European Standards.

1. Introduction